3.

CASE #	CASE NAME	HEARING NAME
CVRI2306200	BAGHINYAN vs FCA US, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiffs Karen Baghinyan and NB Auto Group
Represented by Wirtz Law APC and Norman Taylor & Associates

Responding party: Defendant FCA US LLC
Represented by Clark Hill LLP

This is a lemon law action. On September 10, 2021, Plaintiffs Karen Bahinyan and NB Auto Group purchased a 2021 Dodge Durango (the "Subject Vehicle") sold with express warranties from Defendant FCA US LLC (or "FCA"). The Complaint, filed November 17, 2023, alleges causes of action for (1) breach of express warranty and (2) breach of implied warranty.

On July 29, 2025, Plaintiffs filed a notice of conditional settlement of entire case. Plaintiffs accepted FCA's 998 Offer (the "Offer") on July 28, 2025.

Plaintiffs were represented by two firms – Norman Taylor & Associates ("NTA") and Wirtz Law ("WL"). Plaintiffs now move for an award of attorneys' fees in the amount of $70,539.75 (lodestar amount $47,026.50 and multiplier of 1.5). NTA incurred $13,010.62 in fees and WL incurred $35,080.00 in fees. Plaintiffs maintain that they filed a memorandum of costs on November 17, 2025. Plaintiffs maintain they are the prevailing party and the fees are reasonable.

In opposition, FCA argues Plaintiffs' motion is untimely under *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644. FCA does not dispute Plaintiffs are entitled to reasonably incurred attorneys' fees but that the requested attorneys' fees here are unreasonable given the straightforward and routine nature of the case.

In reply, Plaintiffs argue the motion is timely, and FCA provides no relevant evidence to demonstrate the requested fees are unreasonable or unnecessary. Plaintiffs generally repeat their arguments set forth in moving papers.

Analysis

I. Evidentiary Objections

The Court **SUSTAINS** Plaintiffs' objection to Exhibit C attached to the Declaration of Alexis C. Santana as irrelevant.

II. Standard of Law

Under Civil Code section 1794, subdivision (d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The federal Magnuson-Moss Warranty Act contains a similar fee-shifting provision. (15 U.S.C. § 2310, subd. (d)(2).)

III. Merits

A. Timeliness

A motion for fees incurred up to the time of judgment in the trial court "must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case." (Cal. Rules of Court, rule 3.1702(b)(1).) The time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.,* rule 8.104(a)(1).) The clock starts to run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock). (*Hatlevig, supra,* 118 Cal.App.5th at 649.)

In *Hatlevig,* the plaintiff's counsel notified the court of the settlement on June 2, 2023, and on July 11, 2023, the clerk generated a "Notice of Dismissal by Court" stating the case would be deemed dismissed without prejudice on August 15, 2023. (*Hatlevig, supra,* 118 Cal.App.5th at 646-647.) On April 4, 2024, the plaintiff served its motion for attorney fees on the manufacturer. (*Id.* at 647.) On April 26, 2024, the trial court held that because the case was dismissed on August 15, 2023, plaintiff's motion was untimely even giving him the benefit of the full 180 days after August 15, 2023. (*Id.*) On June 17, 2024, the trial court signed a minute order that dismissed the operative complaint. (*Id.*) The Court of Appeal held, "[W]hen a case settles the plaintiff '*must* serve and file a request for dismissal of the entire case within 45 days.'" (*Id.* at 649, citing Cal. Rules of Court, rule 3.1385(b), italic included.) "If the plaintiff does not do so, 'the court *must* dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed.'" (*Ibid.,* italics included.) The Court of Appeal held August 15, 2023 was the date of dismissal for purposes of starting the clock running on the time that plaintiff had to move for attorney fees, and the June 17, 2024 dismissal order was a nunc pro tunc correction of the failure by the trial court to file a dismissal order on August 15, 2023. (*Id.* at 650.)

Here, Plaintiff filed a Notice of Settlement on July 29, 2025. On March 12, 2026, the Court dismissed without prejudice because no timely declaration was received pursuant to Local Rule 3116. On June 8, 2026, the Court granted Plaintiffs' motion to set side dismissal and retained jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. Notice of Entry of Judgment was filed on June 10, 2026. Plaintiffs filed the instant motion on June 17, 2026.

The clock starts to run on the time to move for attorney fees from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock). (*Hatlevig, supra,* 118 Cal.App.5th at 649.) Applying *Hatlevig*, the motion is **TIMELY**.

B. Lodestar

The parties do not dispute that Plaintiffs are entitled to reasonable attorney fees and costs.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra,* 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra,* 22 Cal.4th at 1095.)

NTA claims the following:

Staff	**Hourly Rate**	**Hours**	**TOTAL**
Norman F. Taylor (NFT), attorney	$645	16.70	$10,771.50
Nick McNaughton (NMC), paralegal	$250	2.9	$725.00
Lusine Musat ("LM"), paralegal	$250	7.2	$1,800.00
Lori Richardson ("LR"), paralegal	$250	0	$
TOTAL			**$13,296.50**

WL claims the following[1]:

Staff	Hourly Rate	Hours	TOTAL
Amy R. Rotman (ARR), senior attorney	$600	6.8	$4,080.00
Jessica R. Underwood (JRU), senior attorney	$600	24.1	$14,460
Safia Bootwala (SHB), attorney	$450	1.3	$585
Kyle B. Sample (KBS), attorney	$450	26.4	$11,880
Rebecca Evans (REE), paralegal	$300	5.5	$1650
Dalia Zaki (DZ), paralegal	$250	0.4	$100
Kaitlyn Dols (KD), paralegal	$250	9.3	$2,325
TOTAL		73.8	**$35,080**

i. Reasonable Hourly Rate

The hourly rates do not appear to be reasonable for Riverside County. Plaintiff provides no evidence that they could not secure a local attorney and as such, the out-of-town attorney's home market rate should not be applied. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, supra,* 22 Cal.4th at 1095.) Thus, the Court reduces the hourly rates as follows: $500/hour for partners and senior counsel, $400/hour for associates, and $150/hour for law clerks/paralegals.

ii. Reasonable Hours

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

FCA challenges specific billing entries.

1. WL's Billed Time

Motion to Compel. FCA challenges the 8 hours billed by JRU and 8.1 hours billed by KBS to draft motions to compel discovery responses. FCA points out the Court previously awarded monetary sanctions for four discovery motions heard on July 14, 2025, and FCA satisfied those sanctions. FCA points out this is impermissible double recovery because Plaintiff has already been compensated for the work through the Court's sanctions award. **STRIKE** 8 hours from JRU billing and 8.1 hours from KBS billing.

[1] WL lists each time keeper and then the hours that are billed as well as the hours that were not billed. This table goes by the hours that were billed.

Anticipated Time. FCA challenges the 4.2 hours for anticipated attorney time for ARR and REE because the work has not occurred. **STRIKE** 0.7 from REE billing.

2. NTA Billed time

Templated Discovery Requests. FCA challenges the 5.1 hours billed by NFT for drafting boilerplate discovery requests. **STRIKE** 3 hours from NFT billing.

Based on a review of the billing records, the Court should make specific reductions to the hours claimed as follows:

For NTA:

Staff	**Hourly Rate**	**Hours**	**TOTAL**
Norman F. Taylor (NFT), attorney	$500	13.70	$6,850.00
Nick McNaughton (NMC), paralegal	$150	2.9	$435.00
Lusine Musat (“LM”), paralegal	$150	7.2	$1,080.00
Lori Richardson (“LR”), paralegal	$150	0	$0
TOTAL			**$8,365.00**

WL claims the following:

Staff	**Hourly Rate**	**Hours**	**TOTAL**
Amy R. Rotman (ARR), senior attorney	$500	6.8	$3,400.00
Jessica R. Underwood (JRU), senior attorney	$500	16.1	$8,050.00
Safia Bootwala (SHB), attorney	$400	1.3	$520.00
Kyle B. Sample (KBS), attorney	$400	18.3	$7,320.00
Rebecca Evans (REE), paralegal	$150	4.8	$720.00
Dalia Zaki (DZ), paralegal	$150	0.4	$60.00
Kaitlyn Dols (KD), paralegal	$150	9.3	$1,395.00
TOTAL			**$21,465.00**

iii. Multiplier

FCA also argues the case does not warrant a multiplier, or a negative multiplier should be applied, because there was no showing by Plaintiffs’ counsel of any novelty or difficulty in this case, that litigation precluded other employment by the attorneys; and any contingent nature of the fee award, given the mandatory fee-shifting statute, and the near certainty of prevailing on the merits based on the Song Beverly Act.

The purpose of a fee enhancement is “primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) “Fair market value” typically includes a premium for the risk of nonpayment or delay in payment of attorney fees. (*Id.* at 1138.)

“The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) Contrary to Plaintiffs’ contention, this case is not novel or complex. It is a routine lemon law case. While counsel has extensive lemon law experience which may have contributed to the outcome, that experience is reflected in the high hourly rates, and further enhancement is not necessary. Although counsel worked on a contingency basis, because attorney’s fees are mandatory under the Song Beverly Act, the risk that counsel would not recover for hours incurred was relatively low. Accordingly, the Court **DENIES** the multiplier.

iv. Costs

Plaintiffs assert they filed Memorandum of Costs on November 17, 2025 seeking a total of $6,578.47. (Wirtz Decl., ¶41.) However, such memorandum was not found on eCourt. The memorandum of costs is not listed as a rejected document in eCourt either.

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) Moreover, California Rules of Court rule 3.1700(a)(1) provides, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.”

Here, Notice of Entry of Judgment was filed on June 10, 2026. Although no memorandum of cost was found on eCourt, FCA does not dispute the $6,578.47 claimed by Plaintiffs. **Accordingly, the Court awards costs in the amount of $6,578.47.**

The Court awards the Plaintiffs as follows: **$8,365.00** in attorney’s fees to NTA and **$21,465.00** in attorney’s fees to WL. Fees cost payable within 30 days of this order.

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